

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2024-CC-2691

KALMAN HARTIG and ANY UNKNOWN
PARTY(s) IN POSSESSION,
Defendants.

MOTION FOR PAYMENT OF RENT INTO REGISTRY OF COURT

COMES NOW the Plaintiff, by and through the undersigned counsel and moves this Honorable Court to require the Defendant to pay rent into the Registry of the Court in the above cause, and in support of the motion states:

1. Plaintiff has brought an action against the Defendant for a writ of possession for the premises: 900 9th Avenue East; Lot #100 of Colonial Manor Mobile Home Park, for his failure to comply with the rules and regulations of Colonial Manor Mobile Home Park, specifically Rule 7 pertaining to using the exterior and carport for storage, resulting in a failure to maintain the premises on Lot #100 in a neat and clean manner
2. The Plaintiff complied with its statutory obligation to notify the Defendant of the violation of the rules, with specificity, how to come into compliance with the rules, that is, ceasing the use of the driveway for storage, removing the items stored in and on the driveway so that the mobile home can be considered clean, neat and sanitary.
3. The Defendant was originally notified of his violation of the rules January 17, 2024.
4. However Defendant continued to violate the same rules, after being notified of his obligation to cure the rule violations.

5. As a result, the Plaintiff terminated the right of the Defendant to reside on the premises as of April 7, 2024 by correspondence sent on March 1, 2024.
6. Defendant then claimed to have cured the violations, and through his attorney, contacted the undersigned before the Plaintiff officially filed any eviction paperwork, and showed proof of complying with the rules and violations being cured.
7. Consequently, the undersigned did not file an eviction after April 7, 2024, when Defendant's lease was originally terminated.
8. However, less than 8 weeks later, the same violations started occurring again and were captured in pictures taken by Park Management.
9. A second seven-day violation letter was issued on June 10, 2024 and after not curing the violation and continuing to be out of compliance with the Park Rules, the Park issued a final Notice of Termination of Lease, which was posted, sent to the Defendant, and a courtesy copy sent to his attorney on June 28, 2024, indicating the Defendant's lease would be terminated as of August 4, 2024.
10. Upon doing so, Plaintiff ceased accepting rent from the Defendant.
11. For the Defendant to be permitted to present his defenses to the Plaintiff's Complaint, the Defendant is obligated to pay unpaid rent into the Registry of the Court pursuant to Fla. Stat. §723.063 (2); failure to pay rent into the Registry of the Court constitutes a waiver of all of the Defendant's claimed defenses.
12. The Defendant owes rent for the months of July, August, September and October of 2024, which is the sum of \$3,046.44, which is \$761.61 for July of 2024, \$761.61 for the month of August 2024 and \$761.61 for the month of September and \$761.61 for the month of October 2024. This sum does not include late fees.

13. The better practice is that the Court determine the amount of rent due. The relevant statute reads:

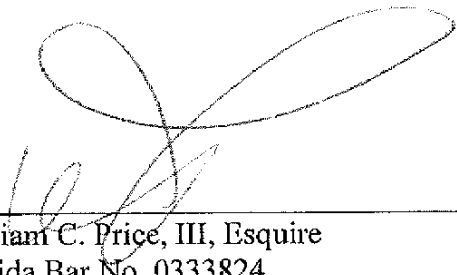
2) In any action by the park owner or a mobile home owner brought under subsection (1), the mobile home owner shall pay into the registry of the court that portion of the accrued rent, if any, relating to the claim of material noncompliance as alleged in the complaint, or as determined by the court. The court shall notify the mobile home owner of such requirement. The failure of the mobile home owner to pay the rent, or portion thereof, into the registry of the court as required herein constitutes an absolute waiver of the mobile home owner's defenses other than payment, and the park owner is entitled to an immediate default. Fla. Stat. Ann. § 723.063.

Fogelman vs. MHC Eldorado Village, LLC, 23 Fla. L. Weekly Supp 668b (Circuit Court, 6th Judicial Circuit, Pinellas County, UCN 522015AP000035XXXXCI October 15, 2015), in a Chapter 723 eviction for failure to be approved for residency eviction, and Abramski v. Paradise Park Co-op, Inc. 19 Fla. L. Weekly Supp. 178a (Circuit Court, 6th Judicial Circuit, Pinellas County, UCN 52201AP0000017XXXXCV November 22, 2011) are both cases in which Fla. Stat. §723.063 have been applied to pre-trial rent payment requirements.

14. Plaintiff in its complaint is seeking a writ of possession, however, in the body of the complaint, the Plaintiff refers also to damages and identifies the amount of rent payable. Because of this, the Plaintiff seeks this Court to conduct a summary proceeding to determine the amount of rent that must be paid for the Defendant to pursue its affirmative defenses and to notify the Defendant of his obligation to pay said rent into the Registry of the Court.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Motion for Payment of Rent into Registry of Court has been furnished via U.S. Mail upon the Defendants, ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9th Avenue East, Lot #100, Palmetto, Florida, 34221 and to Peter A. Peak, Esq., 2002 Manatee Ave. West, Bradenton, Florida 34205 at peterpeak@jj.net on this 21st day of October, 2024



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